

Court No. - 10

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Hon'ble Arun Tandon,J.

Hon'ble Abhai Kumar,J.

Issue notice to respondent no. 3 only at this stage fixing 25th May, 2016 as the date. Petitioner to take steps by speed post within three days.

List on the date fixed.

On behalf of the petitioner it is contended that there has been complete non-consideration of the notification, which has been issued by the U.P. Power Corporation in the matter of enhancement of the rate from time to time as per the instructions of cost data book. Therefore, the impugned orders are unsustainable.

The matter does require enquiry by this Court.

Till the next date of listing operation of the order impugned dated 08.12.2015 and 16.05.2015 shall remain stayed.

Order Date :- 19.4.2016

Pkb/

Court No. - 21

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble V.K. Shukla,Acting Chief Justice

Hon'ble Mahesh Chandra Tripathi,J.

List this matter after four weeks.

Interim order, if any, is extended till the next date of listing.

Order Date :- 8.7.2016

pks

Chief Justice's Court

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

S.O. to 6.9.2016.

Interim order, if any, to remain operative till the next date.

Order Date :- 8.8.2016

RK

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Chief Justice's Court

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

S.O. to 4.10.2016.

Interim order, if any, to remain operative till the next date.

Order Date :- 6.9.2016

VMA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Chief Justice's Court

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Suneet Kumar,J.

S.O. to 23.11.2016.

Interim order, if any, to remain operative till the next date.

Order Date :- 26.10.2016

VMA

(Dilip B Bhosale, CJ)

(Suneet Kumar, J)

Chief Justice's Court

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

S.O. to 22 December 2016.

Interim order, if any, to remain operative till the next date.

Order Date :- 23.11.2016

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Chief Justice's Court

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

S.O. to 25.1.2017.

Interim order, if any, to remain operative till the next date.

Order Date :- 22.12.2016

RK

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Chief Justice's Court

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

S.O. to 22.2.2017.

Interim order, if any, to remain operative till the next date.

Order Date :- 25.1.2017

VMA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Court No. - 29

Case :- WRIT - C No. - 16801 of 2016

Petitioner :- M.K. Pathak ,Executive Engineer

Respondent :- The Electricity Ombudsman And 2 Ors.

Counsel for Petitioner :- Awadhesh Kumar Saxena

Counsel for Respondent :- S.C.

Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

Heard learned counsel for the petitioner.

The petitioner is an Executive Engineer, Electricity Urban Distribution Division-II, Saharanpur. He has filed this petition challenging the orders dated 08.12.2015 and 16.05.2015 passed by respondent No.1 Electricity Ombudsman, Lucknow and the Consumer Grievance Redressal Forum, Saharanpur Division, Saharanpur (*hereinafter referred to as "Forum"*).

The averments as made in the petition reveals that the complaint of the respondent No.3 was allowed by the Forum vide order dated 16.05.2015.

This order was challenged by the Executive Engineer in appeal before the Ombudsman. The Ombudsman has dismissed the appeal by the order dated 08.12.2015.

The U.P. Electricity Regulatory Commission (Consumer, Grievance Redressal Forum and Electricity Ombudsman) Regulations 2007 framed under Section 181 read with Section 42 (5) and (8) of the Act, 2003 by the U.P. Electricity Regulatory Commission vide Regulation 3 provides for constitution of Forum as provided under Section 42 (5) of the Act. The Forum so established has been authorised to take up complaints of the nature specified or may even take *suo-moto* action if considered appropriate in the interest of justice. The decision of the Forum is subject to the final adjudication of the matter by the Ombudsman.

Sub-section 5 of Section 42 of the Electricity Act, 2003 provides that every distribution licensee i.e. the Electricity Distribution Authority

would establish a Forum for redressal of the grievances of the consumers in accordance with the guidelines, as may be prescribed by the State Commission:-

(5) Every distribution licensee shall, within six months from the appointed date or date of grant of licence, whichever is earlier, establish a forum for redressal of grievances of the consumers in accordance with the guidelines as may be specified by the State Commission.

Sub-sections 6 and 7 of Section 42 of the Electricity Act, 2003 are more relevant and material and as such are being reproduced herein below:-

(6) Any consumer, who is aggrieved by non-redressal of his grievances under sub-section (5), may make a representation for the redressal of his grievance to an authority to be known as Ombudsman to be appointed or designated by the State Commission.

(7) The Ombudsman shall settle the grievance of the consumer within such time and in such manner as may be specified by the State Commission.

The aforesaid sub-sections entitle the consumers whose grievances are not satisfied by the Forum to make a representation before the Ombudsman appointed or designated by the State Commission for getting his grievances considered and satisfied. The Ombudsman is obliged to settle the grievances of the consumer within the time prescribed by the State Commission.

A plain reading of the above provisions clearly reveals that it is the consumer alone who is entitle to raise his grievances before the Forum and the Ombudsman and not the Electricity Distribution Licensee.

The U.P. Electricity Supply Code, 2005 vide Clause 7.10 provides for the Consumer Grievance Redressal Forum and Ombudsman. The aforesaid Clause 7.10 of the Code is quoted below:-

7.10 Consumer Grievance Redressal Forum & Ombudsman:-

(i). The Licensee shall set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and as amended from time to time.

(ii). Any consumer aggrieved by any action of the Licensee, in respect of the matters mentioned in clause 7.7.1 to 7.7.5

or those covered under the said Regulations may file a complaint with the Licensee.

(iii). If the Licensee fails to settle the complaint of the consumer within the time limits specified in this Code or otherwise provided in the said Regulations, or the consumer is not satisfied by the redressal, the consumer can file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulations.

(iv). Any consumer, aggrieved by non-redressal of his grievances by the Consumer Grievance Redressal Forum, may make a representation for the redressal of his grievance to an Ombudsman as designated /appointed by the Commission in accordance with the procedure specified in UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003.

The aforesaid clause provides that any consumer aggrieved by any action of the licensee in respect of specified matters may file a complaint with the licensee and if the licensee fails to settle the complaint, he has a right to file a complaint in the Forum.

It further provides that any consumer aggrieved by non-redressal of his grievance by the Forum, may make a representation for the redressal of his grievance to an Ombudsman as designated/appointed by the Commission.

The bare reading of the aforesaid provisions of the Code would reveal that again it is only the consumer who is entitle to make a complaint before the Forum and a further representation, if not satisfied to the Ombudsman. This right has not been given to the Electricity Distribution Licensee.

In view of the language so used in the above provisions, it is thus implicit that the Electricity Distribution Licensee or its Officers are not authorised to raise any grievance before the Forum or the Ombudsman. Therefore, obviously once the Forum had decided the complaint of the consumer, the petitioner or the Electricity Distribution Licensee had no authority in law to approach the Ombudsman.

Accordingly, we are of the opinion that the Ombudsman has not committed any error of law in dismissing the alleged representation/appeal of the petitioner against the order of the Forum, even if it happens to be on merits.

We do not find any error or illegality in the order of the Forum which may warrant interference by us in exercise of the extraordinary discretionary jurisdiction.

Accordingly, there is no merit in the petition and the same is dismissed holding that the Electricity Distribution Licensee or its Officers have no authority in law to approach the Ombudsman.

The writ petition is, accordingly, **dismissed**.

Order Date :- 10.10.2018

Nirmal